

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
APRIL 15, 2026
8:30 a.m.

3. HOLLY A. AVILA V. DONALD F. HOPKINS, III

23FL0439

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent on February 06, 2026, to modify child custody and visitation. The RFO also includes a request for temporary emergency orders pending the hearing, which the court denied. The filing of the RFO prompted the court to refer the parties to a CCRC session set for February 26, 2026.

To date, there is no proof of service of the RFO in the court's file. Additionally, the court is in receipt of a memorandum from the CCRC counsellor indicating that neither party appeared for the CCRC session as scheduled. The court drops the matter from the calendar without prejudice due to the lack of service.

TENTATIVE RULING #3: MATTER IS DROPPED FROM THE CALENDAR WITHOUT PREJUDICE DUE TO THE LACK OF SERVICE. NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.